Rewriting the constitution, and the 2010 elections

The 2008 Constitution (The Constitution of the Republic of the Union of Myanmar) allowed for a return to a limited form of democracy. Power was to be notionally moved from the military to a civilian government elected by some form of franchise. However, the 2008 Constitution is a deeply flawed document. It enshrined the privileges of the military[8] and did nothing to challenge the notion that only the army could act as the guarantor of Myanmar. Banners and slogans such as that displayed in Appendix 5 continue to be common throughout the country.

Even worse, it perpetuated the obsessively restrictive approach to citizenship that has bedevilled the constitution of Myanmar since independence. At its core was the idea that only those ethnicities who had lived in Myanmar in 1824 could be citizens now, and the citizenship restrictions of the 1974 Emergency Immigration Act were retained in Article 345:

> All persons who have either one of the following qualifications are citizens of the Republic of the Union of Myanmar:
>
> (a) person born of parents both of whom are nationals of the Republic of the Union of Myanmar;
> (b) person who is already a citizen according to law on the day this Constitution comes into operation.[9]

In reality, this legislation is even more restrictive than the 1974 Act, as it restricts citizenship to those already deemed to be citizens or children born to two parents who are already citizens. In consequence of this legislation, the Rohingyas have been denied membership of the country they were born in and are subject to persecution in their daily lives. This is in open breach of the UN 1961 Convention on the Reduction of Statelessness, in which Article 1 states: 'A Contracting State shall grant its nationality to a person born in its territory who would otherwise be stateless'.[10] The government in Myanmar is aware of the implications of these policies and has complained that:

> Through international media, Bengali [Rohingya] groups are widely publicizing the extent of government controls over them. Whilst the Government deems such measures as necessary in the context of the country's situation and the non-citizen status of this group, the international community condemns these measures as violations of fundamental rights. This … has undermined the country's reputation and affected its international relations.[11]